



Environment and
Climate Change Canada

Environnement et
Changement climatique Canada



KTUNAXA
NATION

Environmental Damages Fund Teck Coal Ltd. Penalty

Virtual Information and Engagement Session
October 31, 2022

KNC WELCOME

**Kəmāk'qa ksuktuṭa k kuk'qani ɛ kītqakiṭ haqa ksiṭ ɛxa
ʔa kṭukqaʔis ksukitq'ukaʔmi k kiʔin Ktunaxa naʔs
ʔamakʔis. Qus pik'aksɛ naʔs ɛxaṭ yaqanakiṭ haqaʔki.
KītqawiɁmu kakitwiɁkiṭ ʔamakʔis kīsniɁik kɛxaṭ qa
kitkk'axuxami k kītqakiṭ haqa ɛ kīsʔin ʔaknumuɁtiṭʔis.**

*Strong, healthy citizens and communities, speaking our
languages and celebrating who we are and our history
in our ancestral homelands, working together,
managing our lands and resources, within a self-
sufficient, self-governing Nation.*

KNC WELCOME

wu?u ?at ?insi wi?i? haqapmu kyakxu ?aki,
Water is important for fish to live and also
?at su?uk ?ini qaki? qsawsaqaps tuq?qamna ?
makes it good habitat for animals and
?a?ux ma?i?its ? xa? ta? ha?qati
qapsins ?aq?smakni?
for people to pick vegetation.

ECCC WELCOME



Elk River from the Elk Valley (photo: [Rob Lafond, CC](#))

COLLABORATIVE APPROACH

- The **Teck Coal penalty** is as a result of infractions that occurred in the *Qukin ʔamakʔis* (the Elk Valley) area within the Ktunaxa Nation homeland.
- In the spirit of partnership and reconciliation, **Environment and Climate Change Canada (ECCC) and the Ktunaxa Nation Council (KNC)** are collaborating on the development of an approach to allocate Teck penalty funding.
- ECCC and KNC are working together to develop a first call for proposals with **an initial focus on *Qukin ʔamakʔis*** and the immediate downstream area.
- Today's session introduces the EDF Teck Coal penalty to potential applicants, followed by time for question and discussion.



SESSION AGENDA

- Introduction to Environmental Damages Fund (EDF) and background on Teck Coal Ltd. (Teck Coal) Penalty
- Interests and Priorities for *Qukin ?amak?is*
- Eligibility Considerations
- Proposed Timeline and Approach for a Call for Proposals (CFP)
- Questions and Open Discussion



INTRODUCTION TO THE ENVIRONMENTAL DAMAGES FUND & BACKGROUND ON TECK COAL PENALTY

ENVIRONMENTAL DAMAGES FUND

- The **Environmental Damages Fund (EDF)** directs monies received from fines, court orders, and voluntary payments for environmental offences **to projects that will benefit Canada's natural environment.**
- **ECCC administers the EDF** and delivers the program in collaboration with relevant federal partners (e.g. Fisheries and Oceans Canada, Parks Canada).
- EDF funding:
 - ✓ Is guided by court recommendations;
 - ✓ Typically supports community-based projects within the area in which damage occurred;
 - ✓ Generally uses open Call for Proposals processes; and
 - ✓ Supports projects in the areas of restoration, environmental quality improvement, research and development, education and awareness.

ENVIRONMENTAL DAMAGES FUND: PRIORITY AREAS



- **Projects that restore the natural environment and conserve wildlife** (e.g. re-establishing spawning habitat)



- **Environmental quality improvement initiatives** (e.g. improving riparian zones)



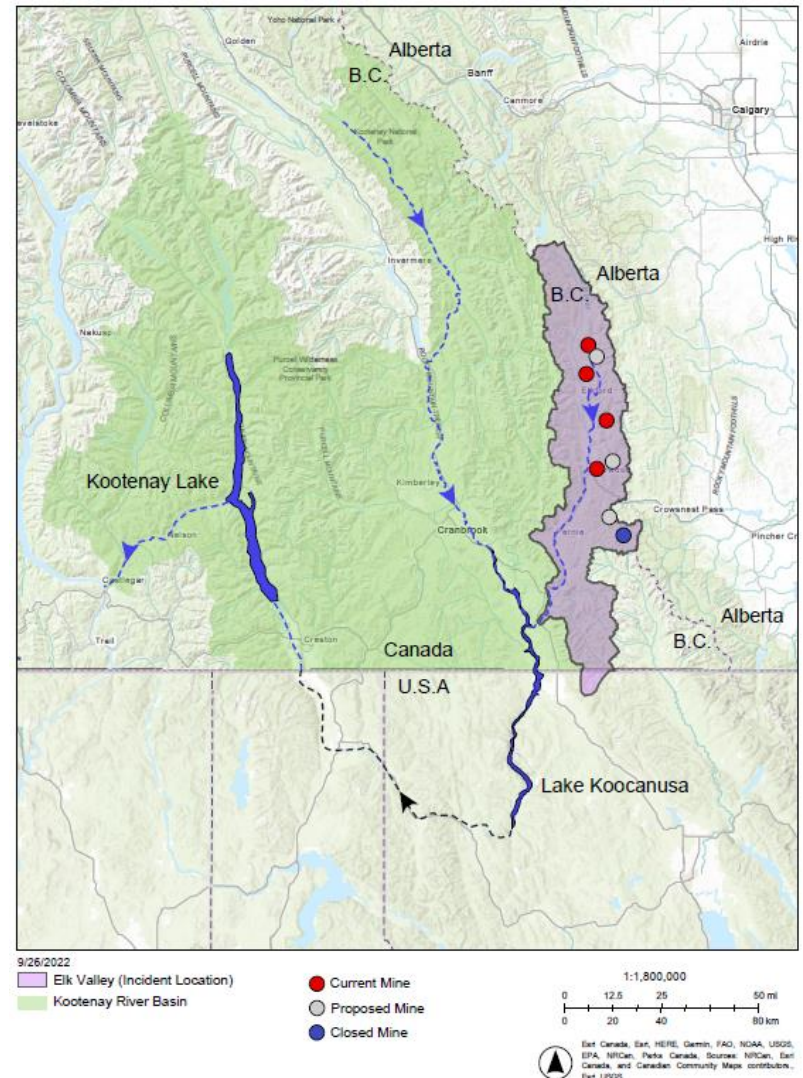
- **Research and development** on environmental restoration and improvement (e.g. gathering baseline data on aquatic species)



- **Education and awareness** on issues affecting the health of the natural environment (e.g. training volunteers in restoration activities)

TECK COAL PENALTY & COURT DECISION

- March 2021: Teck Coal Ltd. pled guilty in the BC Provincial Court on charges laid under the *Fisheries Act* for selenium and calcite deposited into the Upper Fording River.
- Teck Coal was ordered to pay a total of \$60M in fines and monetary penalties: **\$58M directed to the EDF** and \$2M to the Receiver General.
- **The offence occurred in Qukin ʔamakʔis (Elk Valley)**, an area of conservation significance within the Ktunaxa Nation homeland and Shuswap Band. Parts of the Kootenay/Columbia region also have overlapping and shared Secwepemc and Syilx Okanagan Nation territory.
- For violations under the *Fisheries Act* (Section 40.6), EDF fines are to be **“used for purposes related to the conservation and protection of fish or fish habitat or the restoration of fish habitat, or for administering that Fund.”**



APPROACH TO EDF TECK COAL PENALTY

- Through the administration of the EDF Teck Coal penalty, we aim to take an innovative approach to advance shared priorities while fulfilling obligations under the *Fisheries Act* and EDF policies.
- The proposed planning and delivery horizon **focuses first in Qukin ʔamakʔis (the Elk Valley)** and the immediate downstream area, for year 1 funding including:
 - **Project funding** to Ktunaxa Nation and area First Nations;
 - **Open Competitive Call for Proposals** for projects designed to enhance, restore or conserve fish or fish habitat (Fall 2022/Winter 2023), to be jointly reviewed by ECCC & KNC.

POTENTIAL AREAS FOR INVESTMENT

Aquatic & Fish Habitat Restoration

Restore degraded habitat, including waterways, riparian areas, wetlands; invasive species management; support threatened fish species; support fish reintroduction feasibility and address fish passage issues; assess the effectiveness of restoration tools, approaches and projects. This could include connectivity restoration for historical spawning tributaries; invasive species management/control.

Support Terrestrial Conservation

Conservation efforts in the Elk Valley for ecosystem restoration. This could include projects that support terrestrial biodiversity on land that is intended for conservation.

Aquatic Health Monitoring & Research

To inform restoration priorities, support evaluations of aquatic health, enhanced scope of water, sediment, and biomonitoring, and aquatic toxicity and bioaccumulation research. This could include research on selenium geochemical cycling.

Cumulative Effects

Better understand the overall impact of various land uses and stressors to properly evaluate aquatic and fish and fish habitat health.

Ecosystem Impacts of Climate Change

Improve understanding of signaling trends (glacier melt, wildfire, etc.); study drought-related responses; assess hydrology and in-stream flow needs; support, develop, and undertake adaptation and resiliency measures. This could include hydrological assessments of the Elk River.

Mining Effluent Treatment & Source Control

Assess new treatment technologies for effectiveness and longevity under a range of environmental conditions. This could include research on selenium treatment.

ELIGIBILITY CONSIDERATIONS

WHO CAN APPLY?

Eligible groups include:

- ✓ Not-for-profit non-governmental organizations
- ✓ Universities and academic institutions
- ✓ Indigenous organizations
- ✓ Provincial, territorial and municipal governments

Ineligible groups include: Individuals, Businesses, Federal Departments and Agencies.

Please visit the [Environmental Damages Fund](#) website for further details on eligibility.

*Note: Ineligible applicants are encouraged to partner with eligible applicants; however, **offenders are not eligible to apply directly, or to partner with eligible organizations** for funding from fines or monetary payments they have made that were directed to the EDF.*

WHAT ARE EDF ELIGIBLE PROJECTS?

- ✓ Clearly satisfy all Fund Use Requirements specified in the Call for Proposals
- ✓ Address one or more of the program's priority areas
- ✓ Technically sound and feasible
- ✓ Include measurable results that demonstrate how project objectives are met
- ✓ Must take place within Canada
- ✓ Applicants must apply for a minimum of \$250,000 per project

EXAMPLES OF EDF INELIGIBLE PROJECTS

- Projects outside Canada
- Project activities already underway
- Activities required by laws and regulations or mandated by other levels of government
- Core general organization functions and activities such as meetings, maintenance and administration; however, project-specific administrative support is eligible
- Projects for which the primary purpose is to attend general conferences and workshops
- Recreation and tourism projects
- For more information, please visit the [Environmental Damages Fund](#) website.

WHAT ARE EDF ELIGIBLE PROJECT COSTS?

- ✓ Human resources costs – salaries and benefits
- ✓ Contracting and professional services costs
- ✓ Travel and field work related expenses
- ✓ Materials and supplies
- ✓ Printing, production, communications and distribution costs
- ✓ Equipment rentals and purchases
- ✓ Vehicle rentals and operational costs
- ✓ Translation costs
- ✓ Reasonable share of overhead
- ✓ Purchase of capital assets
- ✓ Liability insurance costs directly attributed to the project

Ktunaxa Research and Ethics Committee (KREC)

“It’s known that the adventurous people always followed things to the end. Like we had people who, I guess you could call them researchers, because of their curiosity. They would follow animals or fish or whatever to see where they originate from.”

–Xavier & Marge Eugene (1999, p. 50)

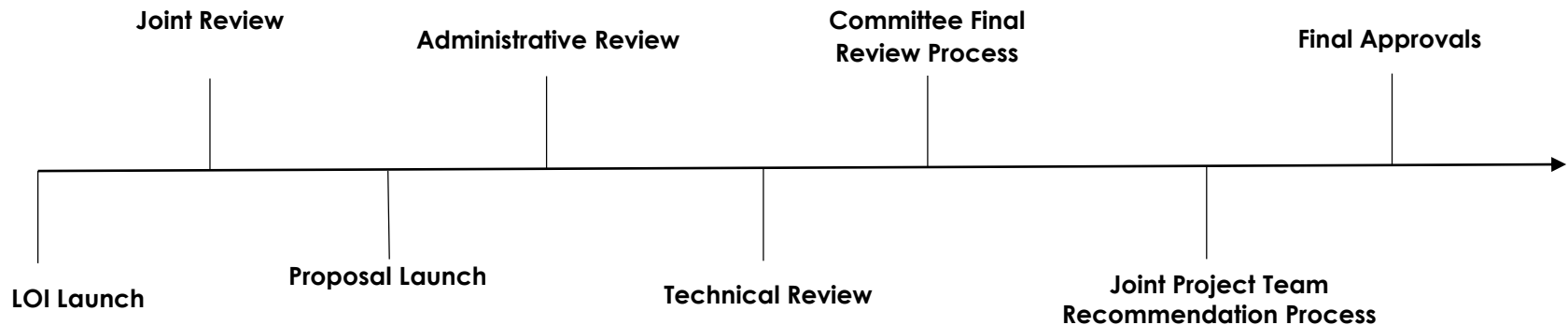
The Ktunaxa Research Ethics Committee (KREC) will be engaged on proposals that include research to occur within ʔamakʔis Ktunaxa. The KREC ensures that the Ktunaxa Nation has a voice within the research and ethics discussion that otherwise would fall under industry authority or the Tri-Council party Statement (TCPS) that research institutes adhere to.

The KREC looks to identify possible violations of ethical research and to provide direction when changes can be implemented which improve the general quality of ethical research. The KREC will act to protect Ktunaxa intellectual property and to define Ktunaxa expectations for research. The KREC also ensures that external researchers align their research to one of the themes from the Ktunaxa Vision Statement.

PROPOSED TIMELINE AND APPROACH FOR A CALL FOR PROPOSALS

PROPOSED TIMELINE FOR A CALL FOR PROPOSALS

- The Call for Proposals (CFP) is notionally targeted to launch with a Letter Of Intent (LOI) in **late 2022 or early 2023**.
- The CFP will be posted online and shared through the EDF program's distribution lists. Further distribution through other channels will be encouraged.
- Applicants will have roughly **eight weeks** to submit LOI through the online application system.
- We expect successful applicants will be invited to submit a full proposal in **early 2023**.



NEXT STEPS

- Program Officers will be available to answer inquiries about eligibility and the application process. Contact the program via email at: fdeouestnord-edfwestnorth@ec.gc.ca
- Questions related to the EDF Program and the current application process can be asked at any time.
- For more information, please visit the [Environmental Damages Fund](#) website.

QUESTIONS & ANSWERS

We welcome any questions or comments.



CLOSING REMARKS

For more information:

ECDC: For ECDC and EDF questions, please visit the [Environmental Damages Fund](#) website or contact the program via email at: fdeouestnord-edfwestnorth@ec.gc.ca

KNC: KNC-specific questions may be directed to the KNC administrative lead, Jacquie Dust, via email at: jdust@ktunaxa.org